

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205254	SILL VS LENDING BEE, INC	MOTION FOR SUMMARY JUDGMENT ON 2ND AMENDED COMPLAINT

Tentative Ruling:

NO OPPOSITION IS FILED

GRANT the motion for summary judgment in favor of Defendant, 22751 Cove View, LLC, and against Plaintiffs.

Plaintiffs, Stasha and Alicia Sill, allege they owned real property located at 22751 Cove View Street in Canyon Lake. In late 2019, Stasha contacted Defendant, Lending Bee, Inc., a mortgage broker, to refinance their existing mortgage loan. Lending Bee and Isperov (Fiduciary Defendants) represented they would be agents to obtain the mortgage loan with a third-party lender. However, Fiduciary Defendants allegedly engaged in predatory lending, fraud and extortion to obtain Plaintiffs' property through wrongful foreclosure. Plaintiffs allege that the Fiduciary Defendants serviced the loan taking \$14,000 in payments, which they did not credit to Plaintiffs' account. On 8/16/22, Isperov and certain Investor Defendants purchased the property at the foreclosure sale. Plaintiffs filed their operative Second Amended Complaint (SAC) on 9/28/23 alleging eleven causes of action: 1) wrongful foreclosure (Civil Code § 2923.5(a)-(e)); 2) breach of fiduciary duty; 3) aiding and abetting breach of fiduciary duty; 4) money had and received – usurious interest; 5) fraud; 6) slander of title; 7) cancellation of instruments (Civil Code §§ 3412-3415); 8) UCL (Bus. & Prof. Code § 17200, *et. seq.*); 9) violations of HBOR; 10) violations of Financial Code § 4970, *et. seq.*; and 11) quiet title.

A declaration was filed by Assaf “Jay” Cohen, counsel of record for Defendant, 22751 Cove View, LLC, with exhibits: Plaintiff, Alicia Sill's responses to RFAs; Plaintiff, Alicia Sills's responses to FROGs; dismissal with prejudice as to SD Dimension; dismissal with prejudice of Defendants, Beyer, *et. all.*; and a copy of Secretary of State, Articles of Organization for Defendant. (See Evidence in Support of Motion for Summary Judgment, Dec. Cohen, Exs. “1” – “5”.) The declarations and exhibits are sufficiently authenticated.

A quiet title action seeks to establish an interest in real property as between adverse claimants. (*Deutsche Bank National Trust v. McGurk* (2012) 206 Cal. App. 4th 201.) The elements are: (1) the plaintiff is the owner and in possession of the land; and (2) defendant claims an adverse interest to the plaintiff. (*South Shore Land Co. v. Peterson* (1964) 226 Cal. App. 2d 725, 740-741.) A quiet title complaint must be verified and must include: (a) a description of the property; (b) the title of the plaintiff as which a determination is sought and the basis of the title; (c) the adverse claims to the title of plaintiff against which a determination is sought; (d) the date as of which the determination is sought; and (e) a prayer for the determination of the title of the plaintiff against adverse claims. (CCP §761.020.)

Moving Defendant, 22751 Cove View, LLC (Cove View), asserts that the only cause of action alleged against it is the 11th cause of action to quiet title, which cannot

be maintained because Plaintiff, Alicia Sill, lacks standing as she admits she is not on title and has nothing to do with the loan. And Plaintiff, Stasha Sill's, requested relief is futile because indispensable parties have already been dismissed with prejudice, and she has not alleged any wrongdoing by Cove View.

Cove View asserts Plaintiff, Stasha Sill, took out a \$390,000 loan from SD Dimension, LLC, which was evidenced by a Promissory Note, and secured by a Deed of Trust recorded against the subject Property. (Undisputed Material Fact [UMF] No. 1.) Plaintiff, Alicia Sill, admitted she never held title to, and does not hold title to the subject Property. (UMF No. 4.) Alicia Sill also admitted she was not the borrower under the SD Dimension Note. (UMF No. 5.) After the Property was foreclosed on, it was purchased by Cove View on 11/30/22. (UMF Nos. 6-8.) Thus, Alicia Sill has no standing to pursue the 11th cause of action.

In addition, Cove View asserts Plaintiff, Stasha Sill, seeks to quiet title in her name as an equitable owner in fee simple subject to the SD Dimension loan. (UMF No. 2.) SD Dimension LLC has already been dismissed with prejudice. (UMF No. 3.) The SD Dimension Deed of Trust and Note were assigned to Gary K. Beyer, Trustee of the Gary K. Beyer Declaration of Trust; Chloe, LLC; and Boris Bystritsky and Alla Bystritsky, Trustees of the Bystritsky Trust. (UMF No. 6.) These owners foreclosed on the subject Property and became the new owners. (UMF No. 7.) On 11/30/22, those owners sold the property to Cove View. (UMF No. 8.) Plaintiffs have already dismissed the prior owners with prejudice. (UMF No. 9.)

Further, Cove View asserts that Plaintiff, Stasha Sill seeks to quiet title in her favor "subject to the original mortgage of SD Dimensions." (SAC ¶ 162.) Cove View argues that in order to do this, she would have to cancel the deed held by Cove View; the deed held by the prior owners (along with the notice of default and notice of trustee's sale); the deed of trust held by LBC (SAC ¶ 124.vi); and cancel the assignment of the note and deed of trust from SD Dimensions. (See SAC ¶¶ 123-124.) However, Cove View argues this cannot be done because Plaintiff has already dismissed with prejudice: SD Dimension, LBC, the Beyer Trustee, and the Bystritsky Trustees, *with prejudice*. Cove View argues that since these parties are necessary and indispensable, and cannot be joined, her request presents an impossibility.

Finally, Cove View correctly argues that there are no allegations it engaged in any wrongful conduct. Defendant Cove View has established its initial burden. However, Plaintiff Stasha Sill has not opposed this motion. She offers no evidence that would raise a triable issue of material fact as to the quiet title cause of action as it applies to Cove View. As a result, the motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404740	ARCILA VS DUBOSE MD	MOTION TO COMPEL FURTHER RESPONSES TO DISCOVERY

Tentative Ruling:

Deny motion to Compel Further Responses to Discovery.